

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
RICHARD SALAZAR,

Plaintiff,

-against-

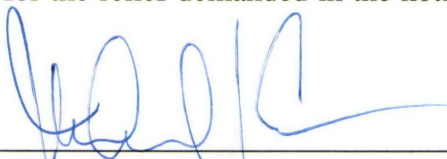
CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER GEORGE
ANNARELLA, POLICE OFFICER MICHAEL
RICKETTS, "JOHN DOES 1-4", PERSONS EMPLOYED
BY THE NEW YORK CITY POLICE DEPARTMENT,Defendants,
-----X**SUMMONS**

Index No.:

Date Filed:

Plaintiff designates
New York County as the
Place of TrialThe Basis of Venue is
CPLR § 504(3)**To the above named Defendants:**

YOU ARE HEREBY SUMMONED to answer the within Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorneys within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you for the relief demanded in the notice set forth below in the within Complaint.

Dated: New York, New York
September 30, 2016Michael J. Croce
MICHAEL J. CROCE, ESQ., P.C.
Attorneys for the Plaintiff
RICHARD SALAZAR
305 Broadway, Suite 100
New York, New York 10007
(212) 566-5828To:
CITY OF NEW YORK, Claim No.2015PI029094
NEW YORK CITY POLICE DEPARTMENT
POLICE OFFICER GEORGE ANNARELLA
POLICE OFFICER MICHAEL RICKETTS

TO: COMPTROLLER
CITY OF NEW YORK
ONE CENTRE STREET
NEW YORK, NEW YORK 10007

CORPORATION COUNSEL
100 CHURCH STREET
NEW YORK, NEW YORK 10007

NEW YORK CITY POLICE DEPARTMENT
C/O 23RD PRECINCT
162 EAST 102ND STREET
NEW YORK, NEW YORK 10029

SGT. GEORGE ANNARELLA
C/O 23RD PRECINCT
162 EAST 102ND STREET
NEW YORK, NEW YORK 10029

POLICE OFFICER MICHAEL RICKETTS
C/O 23RD PRECINCT
162 EAST 102ND STREET
NEW YORK, NEW YORK 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RICHARD SALAZAR,

: **VERIFIED COMPLAINT**

Plaintiff,

: Index No.:

-against-

:

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER GEORGE
ANNARELLA, POLICE OFFICER MICHAEL
RICKETTS, "JOHN DOES 1-4", PERSONS EMPLOYED
BY THE NEW YORK CITY POLICE DEPARTMENT

:

:

:

Defendants,

:

-----X

RICHARD SALAZAR (hereinafter "Plaintiff"), by his attorneys, MICHAEL J. CROCE, ESQ., P.C., complaining against the Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER GEORGE ANNARELLA, POLICE OFFICER MICHAEL RICKETTS, and "JOHN DOES 1-4", PERSONS EMPLOYED BY THE NEW YORK CITY POLICE DEPARTMENT (hereinafter collectively "Defendants") upon information and belief, alleges as follows:

1. That at all pertinent time, Plaintiff was and is a resident of the County, City and State of New York.

2. That at all pertinent times, Defendant CITY OF NEW YORK (hereinafter "CITY") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant CITY maintains defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD") a duly authorized public authority and/or police department, authorized to perform all function of a police department as per the applicable sections

of the New York Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the CITY OF NEW YORK.

4. That at all pertinent times, Defendant POLICE OFFICER GEORGE ANNARELLA (hereinafter "ANNARELLA") was and is a duly sworn officer of the New York City Police Department, and was acting within the scope of employment and under the supervision of said department and according to his duties. He is sued in his individual capacity, and as an employee of the City of New York.

5. That at all pertinent time, Defendant POLICE OFFICER MICHAEL RICKETTS (hereinafter "RICKETTS") was and is a duly sworn police officer of the New York City Police Department, and was acting within the scope of employment and under the supervision of said department and according to his official duties. He is sued in his individual capacity and as an employee of the City of New York.

6. That at all pertinent time, Defendant "JOHN DOES 1-4" (hereinafter "OFFICERS") were and are duly sworn police officers of the New York City Police Department, and were acting within the scope of employment and under the supervision of said department and according to their official duties. Each is sued in his/her individual capacity and as an employee of the City of New York.

7. At all times herein mentioned, the defendants, wither personally or through their employees, were acting under color of State law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the City and State of New York.

8. Each and all of the acts of defendant ANNARELLA, were done by said defendant while acting within the scope of his employment with defendant, CITY.

9. Each and all of the acts of defendant RICKETTS, were done by said defendant while acting within the scope of his employment with defendant, CITY.

10. Each and all of the acts of defendant OFFICERS, were done by said defendants while acting within the scope of their employment with defendant, CITY.

11. That at all pertinent times, Defendant CITY operated, and presently operates defendant NYPD.

12. That at all pertinent times, Defendant CITY controlled, and presently controls Defendant NYPD.

13. That at all pertinent times, Defendant CITY managed, and presently manages Defendant NYPD.

14. Prior to the commencement of this action, Plaintiff filed a Notice of Claim (*see* Exhibit "A" annexed hereto) in accordance with General Municipal Law section 50(e) on or about October 8, 2015. The Notice of Claim set forth the name and address of Plaintiff, his attorney, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

15. Although more than thirty (30) days have elapsed since the service of such Notice of Claim, the City of New York has neglected and or refused to pay said claim or adjust same.

16. A hearing pursuant to General Municipal Law 50-h was held on February 19, 2016.

17. This action is commenced within one year and ninety days from July 25, 2015, the date the plaintiff was arrested.

FACTS

18. On July 25, 2015 in the vicinity of 1968 Third Avenue, in the County, City and State of New York, at approximately 5:40 AM Plaintiff was arrested without probable cause, (hereinafter "ARREST").

19. Thereafter, Defendants commenced a prosecution against Plaintiff without probable cause or justification, causing Plaintiff to be incarcerated for approximately five (5) days.

20. Said prosecution was instituted with malice and bad faith and deliberate indifference to Plaintiff's rights. Said action under Docket No. 2015NY047737 was resolved with an Adjournment in Contemplation of Dismissal and was subsequently dismissed.

21. At all times during the ARREST, assault and battery of Plaintiff, Plaintiff was in the custody of the DEFENDANTS.

22. That Plaintiff was illegally and improperly arrested by Defendants through no fault or negligence of his own.

23. As a result of DEFENDANTS' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue to present day.

24. In addition to the above, as a result of DEFENDANTS actions, Plaintiff was caused to suffer an extended period of incarceration despite not having committed any crime.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST AND IMPRISONMENT

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "24" inclusive with the same force and effect as if fully set forth herein.

26. Defendants ANNARELLA, RICKETTS, and OFFICERS intended to cause the arrest, seizure and imprisonment of Plaintiff without a lawful warrant and without probable cause to arrest.

27. The Defendants knew or should have known that the conduct engaged in would result in the false imprisonment of Plaintiff.

28. Plaintiff was aware of such confinement and did not consent to said confinement.

29. The aforementioned confinement was not privileged in any way and was without legal justification.

30. Defendants CITY and NYPD are responsible for and liable for the acts of Defendants ANNARELLA, RICKETTS and OFFICERS done within the scope of their employment under the doctrine of *Respondeat Superior*.

31. As a direct and proximate cause of DEFENDANTS' false arrest, seizure and imprisonment of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and further pecuniary damages in an amount that exceeds the jurisdictional limitations of all lower courts and in an amount to be determined at a trial of this action.

32. The conduct of the DEFENDANTS set forth above and complained of herein, exhibited such a high degree of moral culpability that it renders DEFENDANTS liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees.

**AS AND FOR A SECOND CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "32" inclusive with the same force and effect as if fully set forth herein.

34. That Defendants ANNARELLA and RICKETTS intended to purposely detain Plaintiff and did falsely accuse the Plaintiff of engaging in conduct constituting a felony.

35. That Defendant ANNARELLA and RICKETTS did knowingly and purposely make false allegations against Plaintiff with knowledge that the allegations were false and without merit.

36. That Defendants ANNARELLA and RICKETTS knew or should have known that the conduct engaged in would result in the continued detention of Plaintiff, preventing him from returning home to his family.

37. Said detention of the Plaintiff was extreme and outrageous and exceeds all bounds usually tolerated by a decent society.

38. Said detention was extreme and outrageous, and caused Plaintiff to suffer severe and debilitating mental anguish which had a disabling effect on Plaintiff.

39. Defendants CITY and NYPD are responsible for and liable for the acts of Defendants ANNARELLA and RICKETTS done within the scope of their employment through the doctrine of *Respondeat Superior*.

40. As a direct result and proximate cause of DEFENDANTS' intentional infliction of emotional distress of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs, all to Plaintiff's damages in an amount which exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

41. That the conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION**

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “41” inclusive with the same force and effect as if fully set forth herein.

43. The Defendants CITY and NYPD failed to exercise reasonable care in hiring Defendants ANNARELLA, RICKETTS and OFFICERS; therefore, breaching their duty to Plaintiff as well as to the public to exercise reasonable care in the hiring of their employees.

44. That Defendants CITY and NYPD should have known of the propensity of Defendants ANNARELLA, RICKETTS and OFFICERS to commit injurious acts.

45. That Defendants CITY and NYPD were negligent in failing to properly train and supervise its employees, more specifically Defendants ANNARELLA, RICKETTS and OFFICERS.

46. Defendants CITY and NYPD are responsible and liable for the acts of Defendants ANNARELLA, RICKETTS and OFFICERS done within the scope of their employment under the doctrine of *Respondeat Superior*.

47. As a result of Defendants’ actions, Plaintiff was caused to suffer significant, severe painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitations of all lower courts and in an amount to be determined at a trial of this action.

48. The conduct of the Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff’s attorney’s fees.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENCE**

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "48" inclusive with the same force and effect as if fully set forth herein.

50. Defendants actions in causing the aforesaid arrest, seizure, imprisonment and malicious prosecution of Plaintiff were in breach of the duty of due care owed to Plaintiff. ANNARELLA, RICKETTS and OFFICERS acted negligently and in disregard for the procedures and safeguards, which are the standard for the arrest and lawful stop of a citizen, in arresting Plaintiff in the absence of reasonable suspicion or probable cause. Officers further breached their duty of care to investigate before affecting the stop and sizure of a citizen and in their continued prosecution of Plaintiff.

51. That Defendants CITY and NYPD are responsible and liable for the acts of Defendants ANNARELLA, RICKETTS and OFFICERS done within the scope of their employment under the doctrine of *Respondeat Superior*.

52. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

53. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees.

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR VIOLATION OF THE UNITED STATES CONSTITUTION
42 U.S.C. 1983 AND NEW YORK CONSTITUTION**

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "62" inclusive with the same force and effect as if fully set forth herein.

55. That it was the Defendants' governmental policy, practice and/or procedure regarding the use of force, which contributed to and caused the incident to occur and certain U.S. Constitutional deprivations to Plaintiff, including the Fourth, Eighth and Fourteenth Amendments to the Constitution.

56. That there have been patterns and/or series of incidents of unconstitutional conduct which have caused the use of excessive force in similar instances as herein.

57. That Defendants CITY, NYPD acted recklessly including a general failure to hire and select psychologically fit and properly trained employees, including Defendants ANNARELLA, RICKETTS and OFFICERS, to conduct arrests.

58. That Defendants CITY, NYPD failed to properly and sufficiently train its employees in the constitutional use of force and failed to adequately supervise the performance of employees, including Defendants ANNARELLA, RICKETTS and OFFICERS, to ensure that those employees exercising bad judgment in the use of force, received corrective training.

59. That Defendants CITY and NYPD improperly trained employees, including Defendants ANNARELLA, RICKETTS and OFFICERS, and that this failure to train was a policy of Defendants CITY and NYPD and demonstrates a deliberate indifference to the rights of persons, including Plaintiff.

60. As a direct result of aforesaid acts, omissions and policies of Defendants, under the color of State law, Plaintiff was deprived of his rights, privileges and immunities guaranteed under

the United States Constitution and 42 U.S.C. § 1983, including but not limited to the Fourth, Eighth and Fourteenth Amendments.

61. As a direct result of the aforesaid acts, omissions and policies of the Defendants, Plaintiff was deprived of his rights, privileges and immunities guaranteed under the New York Constitution including but not limited to Article 1, Sections 8 and 12.

62. As a direct result of the aforesaid acts, omissions and policies of Defendants, Plaintiff was deprived of his rights, privileges and immunities guaranteed under New York Common Law to be free from false arrest, false imprisonment, assault, battery and malicious prosecution.

63. As a direct result of the acts, omissions and policies of Defendants, Defendants acted with deliberate indifference to Plaintiff's constitutional rights in failing to adequately train, supervise and discipline their employees.

64. As a direct and proximate cause of Defendants' violations of the United States Constitution 42 U.S.C. 1983 and New York Constitution, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitations of all lower courts and in an amount to be determined at a trial of this action.

65. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees.

WHEREFORE, Plaintiff demands judgment against Defendants CITY of NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER GEORGE ANNARELLA, POLICE OFFICER MICHAEL RICKETTS, NEW YORK CITY POLICE OFFICERS "JOHN

DOES 1-4" PERSONS EMPLOYED BY THE NEW YORK CITY POLICE DEPARTMENT,
individually and collectively, on all causes of action, in an amount to be determined at the trial of
this action, together with all costs and interests, and for such other and further relief as this Court
may deem just and proper.

Dated: New York, New York
September 30, 2016

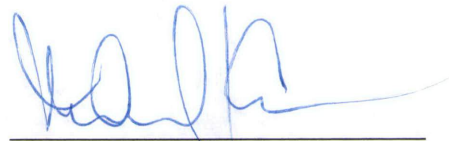
A handwritten signature in blue ink, appearing to read 'Michael J. Croce', is written over a horizontal line.

Michael J. Croce
MICHAEL J. CROCE, ESQ., P.C.
Attorneys for Plaintiff
RICHARD SALAZAR
305 Broadway, Suite 100
New York, New York 10007
(212) 566-5828

ATTORNEY VERIFICATION

MICHAEL J. CROCE, an attorney duly admitted to practice law in the State of New York, under penalties of perjury, affirms the following:

That deponent is the attorney for the Plaintiff in the action within; that deponent has read the foregoing **COMPLAINT** and knows the contents thereof; that the same is true to the deponent's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters believes it to be true and the reason this verification is not made by Plaintiff(s) and is made by deponent is that Plaintiffs is/are not presently located in the County where the deponent-attorney maintains his office.



Michael J. Croce

RICHARD SALAZAR,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER GEORGE
ANNARELLA, POLICE OFFICER MICHAEL
RICKETTS, "JOHN DOES 1-4", PERSONS EMPLOYED
BY THE NEW YORK CITY POLICE DEPARTMENT

Defendants,

SUMMONS AND VERIFIED COMPLAINT

Michael J. Croce, Esq., P.C.
Attorney for Plaintiff Richard Salazar
305 Broadway, Suite 100
New York, New York 10007-3627
(212) 566-5828

PLEASE TAKE NOTICE

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within named Court on

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the one of the Judges of the within named Court,

on day of 20 , at M.

Dated:

Michael J. Croce, Esq., P.C.
Attorney for Plaintiff Richard Salazar
305 Broadway, Suite 100
New York, New York 10007-3627
(212) 566-5828